

22. 9:01 AM CASE NUMBER: C25-00677

CASE NAME: MARIEL HERNANDEZ VS. FORD MOTOR COMPANY

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS

FILED BY: HERNANDEZ, MARIEL

TENTATIVE RULING:

Summary

Plaintiff Mariel Hernandez ("Plaintiff") filed a Motion to Compel Further Responses to Form Interrogatory Nos. 12.1, 15.1, and 17.1 from Defendant Ford Motor Company ("Ford"). The Motion is **continued** and referred to a Discovery Referee.

Background

Plaintiff Mariel Hernandez commenced this action on May 11, 2025, against Defendant Ford Motor Company, asserting claims under the Song-Beverly Consumer Warranty Act (Civil Code § 1790 et seq.) arising from the purchase or lease of a subject vehicle. Plaintiff alleges that during the warranty period, the vehicle developed defects in the transmission system that substantially impaired its use, value, or safety. According to the pleadings, Plaintiff presented the vehicle to Ford's authorized repair facilities on at least six occasions between April 2021 and November 2024 for repair of these alleged nonconformities. Plaintiff contends that despite multiple repair attempts, the defects persist and that Ford failed to conduct a pre-litigation investigation or offer repurchase or replacement as required by the statute. Plaintiff seeks repurchase of the vehicle, actual damages, civil penalties, attorney fees, and costs.

Following the filing of the complaint, the parties proceeded under Code of Civil Procedure section 871.26, which governs discovery in Song-Beverly actions filed after December 31, 2024. The parties served initial disclosures on June 13, 2025, and participated in a mediation session on June 26, 2025. Ford's corporate representative with settlement authority attended the mediation. Plaintiff's counsel was present, but Plaintiff Mariel Hernandez ***was not physically present***; rather, she was reportedly available to participate by telephone. The parties dispute whether Plaintiff's telephonic availability satisfied the statutory requirement that the plaintiff "attend the mediation in person or by remote means."

On January 19, 2026, Plaintiff served Ford with Judicial Council Form Interrogatories, specifically seeking further responses to Interrogatories 12.1 (identifying persons with knowledge of facts regarding the vehicle's defects and repairs), 15.1 (facts supporting affirmative defenses), and 17.1 (facts supporting claims and defenses). Ford responded with objections, contending that discovery was improper because mediation had not concluded under section 871.26. Plaintiff sent a meet and confer letter on January 19, 2026, requesting that Ford amend its objections and provide substantive responses. Ford responded on January 21, 2026, maintaining its position that mediation was incomplete. Plaintiff filed the instant motion to compel on March 2, 2026.

Plaintiff's Contentions

Plaintiff argues that Ford's responses to Form Interrogatories 12.1, 15.1, and 17.1 are deficient and fail to comply with Code of Civil Procedure section 2030.220. Plaintiff contends that the requested information is fundamental to a Song-Beverly action, including the identity of witnesses who

diagnosed or repaired the vehicle and facts supporting Ford's affirmative defenses and denials. Plaintiff asserts that Form Interrogatories are presumptively appropriate in all civil cases and that Ford has no substantial justification for its refusal to provide verified, code-compliant responses. Plaintiff further contends that she satisfied the mediation attendance requirement by making herself available by telephone and that Ford's reliance on section 871.26 is improper. Plaintiff maintains that she engaged in good faith meet and confer efforts prior to filing this motion.

Defendant's Contentions

Ford argues that the motion should be denied because discovery is stayed under Code of Civil Procedure section 871.26, which requires that all discovery be stayed until mediation is concluded. Ford contends that Plaintiff failed to attend the mediation "in person or by remote means" as statutorily required; rather, Plaintiff was merely "available" by telephone without actively participating or interacting with the mediator. Ford asserts that because mediation was not properly concluded, the discovery stay remains in effect and the interrogatories are premature.

Alternatively, Ford argues that Plaintiff failed to meet and confer in good faith as required by Code of Civil Procedure sections 2016.040 and 2025.450, and that Plaintiff's Separate Statement violates California Rule of Court 3.1345 by incorporating arguments by reference, seeking further responses to interrogatories not at issue in the motion, and containing inaccurate statements regarding Ford's position on arbitration. Ford also contends that some of Plaintiff's requests seek privileged materials and attorney work product. Ford maintains that it has complied with section 871.26 in good faith and that its objections are proper.

The Court is not convinced that Plaintiff has substantially complied with the requirement to attend mediation in person or remotely. Plaintiff, being on telephone standby, without appearing during a mediation renders the Song-Beverly Act early resolution provisions meaningless. Nonetheless, the Court is also concerned that both counsel and their firms have a history of pursuing discovery motions in this and in other Song-Beverly Act cases in before this Court.

Analysis

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed., CEB) § 15.32[C]. Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed., CEB) § 15.38.6. Here, Counsel appeared to have met and conferred but are unable to resolve the discovery disputes before Plaintiff filed this third motion.

On motion of a party, stipulation of the parties, or sua sponte, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Code Civ. Proc., §§ 639(a)(5), (b)–(d); Cal. Rules of Court, rules 3.920–3.932; *Lu v. Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating

efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions in this case and in other cases in the jurisdiction of this County, the existing disputes raised by the pending discovery motions, and the nature of the underlying legal issues require the appointment of a Discovery Referee. Code Civ. Proc., § 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

The Court finds here that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court finds that Counsel are unable to effectively meet and confer to arrive at an informal resolution of the discovery disputes.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and rulings.

Ruling

1. A Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Code Civ. Proc., § 639.
2. The Discovery Referee shall hear all disputes relevant to discovery in this case and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear this Motion, and all discovery motions subsequently filed from this date forward.
3. By no later than August 10, 2026 the Parties are ordered to meet and confer pursuant to Code Civ. Proc., § 639(b) or (c) and shall submit a stipulation and proposed order listing the proposed Discovery Referee to the Court along with the proposed referee’s *curriculum vitae* and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by August 10, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, emailed to dept16@contracosta.courts.ca.gov by Wednesday, August 12, 2026. The Court will select one of the proposed referees by minute order. Code Civ. Proc. § 640(b). The Discovery Referee will be requested to sign the Judicial Council ADR-110 Form. Upon receipt of the form executed by the Discovery Referee, the Court will sign the ADR-110 Form.
4. No party has established an economic inability to pay a *pro rata* share of the referee’s fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
5. Plaintiff’s Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc., § 639, that conforms to this ruling, approved as to form by Defendants’ Counsel, no later than five (5) days after the date of this order. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.
6. All future discovery disputes shall be referred to the Discovery Referee until further order of the Court.
7. The Parties are ordered to meet and confer and take all necessary steps to implement this

order forthwith.

8. No appearance is required at the hearing on August 5, 2026.

23. 9:01 AM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION OF DEFENDANT SHANNA FARRELL
FILED BY: NIST, WILLIAM G**

TENTATIVE RULING:

See Line No. 18, above.

Courtroom Clerk's Session

24. 1:30 PM CASE NUMBER: C25-00632

CASE NAME: ROCKY SPEARS VS. CHRISTINA CUNNINGHAM

HEARING IN RE: INFORMAL DISCOVERY CONFERENCE CALL WITH JUDGE REYES

FILED BY:

TENTATIVE RULING:

The Parties are ordered to appear via Zoom for the informal discovery conference. No tentative ruling is published.